

Surendra Prasad Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 5 October 2010 · Writ-C No. 60870 of 2010 · **Writ disposed of; billing grievance relegated to Executive Engineer under Clause 6.5.**

HEADNOTE

A writ raising only a dispute as to calculation of power consumption and the electricity bill is disposed of without deciding the bill, by directing the consumer to file a comprehensive representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a speaking and reasoned order in accordance with law, preferably within six weeks.

FACTUAL SUMMARY

The petitioner, a consumer served by Electricity Distribution Division-I, District Jaunpur, filed a writ petition in the Allahabad High Court challenging the calculation of his power consumption and the electricity bill issued to him. Counsel for the petitioner, the Standing Counsel for the State, and counsel for the Power Corporation (respondents 2 to 4) were heard. The Corporation's counsel stated that under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the Executive Engineer was the officer competent to look into such a grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where the writ raises only a dispute as to calculation of power consumption and issuance of the electricity bill, the High Court, treating the Executive Engineer as the competent officer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, will not decide the bill and will dispose of the petition by directing that if the petitioner files a comprehensive representation (with a certified copy of the order) before the Executive Engineer, Electricity Distribution Division-I, District Jaunpur, it shall be considered and disposed of by a speaking and reasoned order in accordance with law, preferably within six weeks of filing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CALCULATION OF POWER CONSUMPTION AND OF THE ELECTRICITY BILL

Left to the Executive Engineer on a comprehensive representation under Clause 6.5. ¶ 1